

Mrs. Anita Nayak vs Mr. Uday Nayak on 8 November, 2024

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NC: 2024:KHC:45398
WP No. 22058 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 8TH DAY OF NOVEMBER, 2024

BEFORE

THE HON'BLE MR JUSTICE ASHOK S.KINAGI

WRIT PETITION NO. 22058 OF 2023 (GM-FC)

BETWEEN:

MRS. ANITA NAYAK
D/O. RAMACHANDRA G. NAYAK,
AGED ABOUT 29 YEARS,
PRESENTLY R/AT SHIVALAYA,
GURU NAGAR, KONCHADY POST,
MARRYHILL, MANGALURU-575 008.

...PETITIONER

(BY SRI. ANANDARAMA K., ADVOCATE)

AND:

MR. UDAY NAYAK
S/O. KRISHNA NAYAK,
AGED ABOUT 33 YEARS,
R/AT MUMDADI HOUSE, SONANDOOR SCHOOL,
BELTHANGADY TALUK, D.K. DISTRICT-574 224.

...RESPONDENT

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signed by R
DEEPA
Location:
HIGH
COURT OF
KARNATAKA

(BY SRI. S. RAJASHEKAR, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLE 227 OF
THE CONSTITUTION OF INDIA PRAYING TO CALL FOR
RECORDS IN MC NO. 208/2021 ON THE FILE OF THE COURT OF
PRINCIPAL JUDGE, FAMILY COURT, D.K. MANGALURU AND
SETTING ASIDE ORDER DATED 14/09/2023 (ANNEXURE-R)
PASSED BY THE COURT OF PRINCIPAL JUDGE, FAMILY COURT,
D.K. MANGALURU IN MC NO. 208/2021 AND ETC.

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THIS PETITION, COMING ON FOR PRELIMINARY HEARING
IN 'B' GROUP, THIS DAY, ORDER WAS MADE THEREIN AS
UNDER:

CORAM: HON'BLE MR JUSTICE ASHOK S.KINAGI

ORAL ORDER

This writ petition is filed challenging the order dated 14.09.2023 passed in M.C. No.208/2021 by the Principal Judge, Family Court, D.K. Mangalore.

2. Brief facts leading rise to the filing of this writ petition are as under:

The marriage, of the petitioner and respondent was solemnized on 31.12.2018. The respondent filed a petition for dissolution of their marriage. The petitioner appeared and filed a counter denying the allegations made in the petition. The petitioner filed I.A.No.5 under Section 24 of the Hindu Marriage Act seeking interim maintenance to the tune of Rs.60,000/- per month and litigation expenses to the tune of Rs.30,000/-. The respondent filed objections to I.A.No.5. The trial Court vide order dated 28.09.2022 allowed the I.A.No.5 in part, granted interim maintenance NC: 2024:KHC:45398 of Rs.30,000/- per month to the petitioner, and granted litigation expenses of Rs.20,000/-.

3. The respondent, being aggrieved by the order on I.A.No.5, filed a writ petition in W.P.No.22006/2022. This Court, vide order dated 24.11.2022, dismissed the writ petition. The petitioner filed an execution petition in Ex.No.1/2023 for the execution of the order on I.A.No.5 passed in M.C.No.208/2021. The respondent filed an application in I.A.No.10 seeking for revocation/cancellation of order on I.A.No.5. The petitioner filed objections to I.A.No.10. The trial Court, after hearing the parties on I.A.No.10, passed an order dated 14.09.2023 wherein the Family Court allowed the application in part and ordered that till further orders, with effect from 27.12.2022 the order passed on I.A.No.5 be kept in abeyance. The petitioner, aggrieved by the order on I.A.No.10, filed this writ petition.

4. Heard the learned counsel for the petitioner and learned counsel for the respondent.

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5. Learned counsel for the petitioner submits that the petitioner filed I.A.No.5 under Section 24 of the Hindu Marriage Act. The application was allowed by the Family Court, and the respondent, aggrieved by the order on I.A.No.5, filed a writ petition before this Court. This Court dismissed the writ petition. The order passed on I.A.No.5 has attained finality. He submits that the petitioner has not performed the second marriage as contended by the respondent. He submits that the respondent has made an allegation against the petitioner to avoid the payment of interim

maintenance. Hence, the Family Court has committed an error in passing an impugned order. Hence, on these grounds he prays to allow the writ petition.

6. Per contra, learned counsel for the respondent submits that the petitioner has performed a second marriage and she is residing along with her husband. Hence, he submits that the petitioner is not entitled to interim maintenance as ordered in I.A.No.5. He also NC: 2024:KHC:45398 submits that before the dissolution of marriage, the petitioner had performed a second marriage and the marriage is void. Hence, he submits that the order passed by the Family Court is just and proper and does not call for any interference. Hence, on this ground prays to dismiss the petition.

7. Perused the records and considered the submissions of the learned counsel for the parties.

8. It is not disputed that the marriage of the petitioner and respondent was solemnized as per the customs prevailing in their community. The respondent filed a petition for dissolution of their marriage. The petitioner filed an application under Section 24 of the Hindu Marriage Act. In the said proceedings the Family Court allowed the said application and granted interim maintenance of Rs.30,000/- per month from 02.09.2021 and litigation expenses of Rs.20,000/-. The respondent, aggrieved by the order on I.A.No.5, filed a writ petition in W.P.No.22006/2022. This Court vide order dated NC: 2024:KHC:45398 24.11.2022 dismissed the writ petition and confirmed the order passed on I.A.No.5.

The respondent filed I.A.No.10, stating that the respondent got married to one Mr. Harikrishna G. Keelu and herself given an application for a change of her name in the Maharashtra Shasan Rajpatra published from June - 1 to June -15 of 2022, and she is running a business jointly along with said Harikrishna at Mumbai. The petitioner denied the allegations made by the respondent in the affidavit filed in support of the I.A.No.10.

9. Though the petitioner has produced the documents before the Family Court i.e., an affidavit filed by the petitioner sworn on 13.03.2023, which reveals that the petitioner got married to Sri. Harikrishna G. Keelu, and she intends to change her name to Anita Harikrishna Keelu and also produced a copy of the Gazette Notification of the Government of Maharashtra certifying that the Gazette was published on 27.12.2023. The respondent produced petitioner's marriage photographs. The said photographs NC: 2024:KHC:45398 were taken at the time of her second marriage with the said Harikrishna. The said fact was denied by the petitioner. Whether the petitioner married to Harikrishna is a matter which requires trial. Though the respondent has produced the materials before the Family Court prima facie reveals that petitioner has married Harikrishna, the Family Court, considering the material placed on record, held that the petitioner is not entitled to claim any type of alimony or maintenance from the husband, after her second marriage and passed an order on I.A.No.10 stating that order passed on I.A.No.5 be kept in abeyance till giving a finding on the allegation of the husband that she has entered into second marriage and also observed that only after recording of the evidence and after giving a specific finding on the said question of fact, it can be decided whether the husband is liable to pay interim maintenance as per the order passed on I.A.No.5 or not.

10. The trial Court was justified and passed impugned judgment. If the respondent fails to prove that NC: 2024:KHC:45398 the petitioner had married Harikrishna, the petitioner will be entitled to arrears of interim maintenance as ordered in I.A.No.5. Hence, I do not find any error in the impugned order.

11. Accordingly, I proceed to pass the following:

ORDER Writ petition is dismissed.

Sd/-

(ASHOK S.KINAGI) JUDGE BVK